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COUNCIL DIRECTIVE 2001/113/EC

of 20 December 2001

relating to fruit jams, jellies and marmalades and sweetened chestnut purée intended for human consumption

(OJ L 10, 12.1.2002, p. 67)

Amended by:

		Official Journal		
		No	page	date
► <u>M1</u>	Council Directive 2004/84/EC of 10 June 2004	L 219	8	19.6.2004
► <u>M2</u>	Council Regulation (EC) No 1182/2007 of 26 September 2007	L 273	1	17.10.2007
► <u>M3</u>	Regulation (EU) No 1021/2013 of the European Parliament and of the Council of 9 October 2013	L 287	1	29.10.2013
► <u>M4</u>	Directive (EU) 2024/1438 of the European Parliament and of the Council of 14 May 2024	L 1438	1	24.5.2024

▼B**COUNCIL DIRECTIVE 2001/113/EC****of 20 December 2001****relating to fruit jams, jellies and marmalades and sweetened chestnut purée intended for human consumption***Article 1*

This Directive shall apply to the products defined in Annex I.

It shall not apply to products intended for the manufacture of fine bakery wares, pastries or biscuits.

*Article 2***▼M4**

Regulation (EU) No 1169/2011 of the European Parliament and of the Council ⁽¹⁾ applies to the products defined in Annex I to this Directive, subject to the following conditions:

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1. The product names listed in Annex I shall apply only to the products referred to therein and shall be used in trade to designate them.

The product names used in Annex I may, however, be used in addition to the name and in accordance with practices used to designate other products which cannot be confused with those defined in Annex I.

2. The product names shall be supplemented by an indication of the fruit or fruits used, in descending order of weight of the raw materials used. However, for products manufactured from three or more fruits, the indication of the fruits used may be replaced by the words ‘mixed fruit’ or a similar wording, or by the number of fruits used.

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By way of derogation from the first subparagraph, Member States that do not authorise the use of the terms ‘marmalade’ and ‘extra marmalade’ for the product names ‘jam’ and ‘extra jam’, as provided for in the first and second indent of Part I of Annex I, may authorise, on their territory, the use of the indication ‘mixed fruit marmalade’ or ‘[x] fruits marmalade’, where x is the number of fruits, in the case of citrus marmalade manufactured from three or more fruits.

⁽¹⁾ Regulation (EU) No 1169/2011 of the European Parliament and of the Council of 25 October 2011 on the provision of food information to consumers, amending Regulations (EC) No 1924/2006 and (EC) No 1925/2006 of the European Parliament and of the Council, and repealing Commission Directive 87/250/EEC, Council Directive 90/496/EEC, Commission Directive 1999/10/EC, Directive 2000/13/EC of the European Parliament and of the Council, Commission Directives 2002/67/EC and 2008/5/EC and Commission Regulation (EC) No 608/2004 (OJ L 304, 22.11.2011, p. 18).

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3. The labelling shall indicate the fruit content by including the words ‘prepared with ... g of fruit per 100 g’ of the finished product, after deduction of the weight of water used in preparing the aqueous extracts, if appropriate.

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5. The particulars referred to in point 3 shall appear in the same visual field as the product name and in clearly visible characters.

▼ B*Article 3*

For the products defined in Annex I, Member States shall not adopt national provisions not provided for by this Directive.

▼ M4*Article 4*

Only the ingredients listed in Annex II and raw materials which comply with Annex III may be used in the manufacture of the products defined in Annex I.

▼ M3*Article 5*

For the purposes of taking into account technical progress and developments in relevant international standards, the Commission shall be empowered to adopt delegated acts in accordance with Article 6 to amend Annex II and Part B of Annex III.

Article 6

1. The power to adopt delegated acts is conferred on the Commission subject to the conditions laid down in this Article.

2. The power to adopt delegated acts referred to in Article 5 shall be conferred on the Commission for a period of five years from 18 November 2013. The Commission shall draw up a report in respect of the delegation of power not later than nine months before the end of the five-year period. The delegation of power shall be tacitly extended for periods of an identical duration, unless the European Parliament or the Council opposes such extension not later than three months before the end of each period.

3. The delegation of power referred to in Article 5 may be revoked at any time by the European Parliament or by the Council. A decision to revoke shall put an end to the delegation of the power specified in that decision. It shall take effect the day following the publication of the decision in the *Official Journal of the European Union* or at a later date specified therein. It shall not affect the validity of any delegated acts already in force.

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4. As soon as it adopts a delegated act, the Commission shall notify it simultaneously to the European Parliament and to the Council.

5. A delegated act adopted pursuant to Article 5 shall enter into force only if no objection has been expressed either by the European Parliament or the Council within a period of two months from the date of notification of that act to the European Parliament and the Council or if before the expiry of that period, the European Parliament and the Council have both informed the Commission that they will not object. That period shall be extended by two months at the initiative of the European Parliament or of the Council.

▼M4*Article 6a*

No later than 14 June 2027, the Commission shall present a report to the European Parliament and to the Council providing an assessment of the feasibility of the different possibilities for labelling indicating the country or countries of origin where the fruit or fruits used to manufacture fruit jams, jellies, citrus marmalades and sweetened chestnut purée have been harvested. That report shall be accompanied, where appropriate, by a legislative proposal.

▼B*Article 7*

Directive 79/693/EEC is hereby repealed with effect from 12 July 2003.

References to the repealed Directive shall be construed as references to this Directive.

Article 8

Member States shall bring into force the laws, regulations and administrative provisions necessary to comply with this Directive before 12 July 2003. They shall forthwith inform the Commission thereof.

The measures shall be applied so as to:

- authorise the marketing of the products defined in Annex I if they comply with the definitions and rules laid down in this Directive, with effect from 12 July 2003,
- prohibit the marketing of products which do not comply with this Directive, with effect from 12 July 2004.

However, the marketing of products which fail to conform to this Directive but which were labelled before 12 July 2004 in accordance with Directive 79/693/EEC shall be permitted until stocks run out.

When Member States adopt these measures, they shall contain a reference to this Directive or shall be accompanied by such reference at the time of their official publication. The methods of making such reference shall be adopted by Member States.

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Article 9

This Directive shall enter into force on the day of its publication in the *Official Journal of the European Communities*.

Article 10

This Directive is addressed to the Member States.

▼B*ANNEX I***NAMES, PRODUCT DESCRIPTIONS AND DEFINITIONS****I. DEFINITIONS****▼M4**

- ‘Jam’ is a mixture, brought to a suitable gelled consistency, of sugars, the pulp and/or purée of one or more kinds of fruit and water. However, citrus jam may be obtained from the whole fruit, cut into strips and/or sliced.

Member States may, however, in order to take account of the terms commonly used by consumers, authorise, on their territory, the use of the term ‘marmalade’ for the product name ‘jam’, except in the case of citrus jam.

The quantity of pulp and/or purée used for the manufacture of 1 000 g of finished product must not be less than:

- 450 g as a general rule,
 - 350 g for redcurrants, rowanberries, sea-buckthorns, blackcurrants, rosehips and quinces,
 - 180 g for ginger,
 - 230 g for cashew apples,
 - 80 g for passion fruit.
- ‘Extra jam’ is a mixture, brought to a suitable gelled consistency, of sugars, the unconcentrated pulp of one or more kinds of fruit and water. However, rosehip extra jam and seedless raspberry, blackberry, blackcurrant, blueberry and redcurrant extra jam may be obtained entirely or in part from unconcentrated purée of the respective fruits. Citrus extra jam may be obtained from the whole fruit, cut into strips and/or sliced.

Member States may, however, in order to take account of the terms commonly used by consumers, authorise, on their territory, the use of the term ‘extra marmalade’ for the product name ‘extra jam’, except in the case of citrus extra jam.

The following fruits may not be used mixed with others in the manufacture of extra jam: apples, pears, clingstone plums, melons, water-melons, grapes, pumpkins, cucumbers and tomatoes.

The quantity of pulp used for the manufacture of 1 000 g of finished product must not be less than:

- 500 g as a general rule,
- 450 g for redcurrants, rowanberries, sea-buckthorns, blackcurrants, rosehips and quinces,
- 280 g for ginger,
- 290 g for cashew apples,
- 100 g for passion fruit.

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- ‘Jelly’ is an appropriately gelled mixture of sugars and the juice and/or aqueous extracts of one or more kinds of fruit.

The quantity of juice and/or aqueous extracts used in the manufacture of 1 000 g of finished product must not be less than that laid down for the manufacture of jam. These quantities are calculated after deduction of the weight of water used in preparing the aqueous extracts.

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- In the case of ‘extra jelly’, however, the quantity of fruit juice and/or aqueous extracts used in the manufacture of 1 000 g of finished product must not be less than that laid down for the manufacture of extra jam. These quantities are calculated after deduction of the weight of water used in preparing the aqueous extracts. The following fruits may not be used mixed with others in the manufacture of extra jelly: apples, pears, clingstone plums, melons, water-melons, grapes, pumpkins, cucumbers and tomatoes.

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- ‘Citrus marmalade’ is a mixture, brought to a suitable gelled consistency, of water, sugars and one or more of the following products obtained from citrus fruit: pulp, purée, juice, aqueous extracts and peel. In the product name ‘citrus marmalade’, the term ‘citrus’ may be replaced by the name of the citrus fruit used.

The quantity of citrus fruit used in the manufacture of 1 000 g of finished product must not be less than 200 g of which at least 75 g must be obtained from the endocarp.

- The name ‘jelly marmalade’ may be used where the product defined as citrus marmalade contains no insoluble matter except possibly for small quantities of finely sliced peel.

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- ‘Sweetened chestnut purée’ is a mixture, brought to a suitable consistency, of water, sugar and at least 380 g of chestnut (*Castanea sativa*) purée for 1 000 g of finished product.

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- II. Products defined in Part I must have a soluble dry matter content of 60 % or more as determined by refractometer, except for those products that fulfil the requirements of Regulation (EC) No 1924/2006 of the European Parliament and of the Council ⁽¹⁾ as regards reduced sugar, and those products in respect of which sugars have been wholly or partially replaced by sweeteners.

Without prejudice to Article 17(1) of Regulation (EU) No 1169/2011, Member States may, in order to take account of certain particular cases, authorise the reserved names for products defined in Part I which have a soluble dry matter content of less than 60 %.

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- III. Where fruits are mixed together, the minimum contents laid down in part I for different kinds of fruit must be reduced in proportion to the percentages used.

⁽¹⁾ Regulation (EC) No 1924/2006 of the European Parliament and of the Council of 20 December 2006 on nutrition and health claims made on foods (OJ L 404, 30.12.2006, p. 9).

▼B*ANNEX II*

The following additional ingredients may be used in the products defined in Annex I:

- honey as defined in Council Directive 2001/110/EC of 20 December 2001 relating to honey ⁽¹⁾: in all products as a total or partial substitute for sugars,

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- fruit juice, whether or not concentrated: only in jam,
- citrus fruit juice, whether or not concentrated: in products obtained from other types of fruit: only in jam, extra jam, jelly and extra jelly,
- red fruit juices, whether or not concentrated: only in jam and extra jam manufactured from rosehips, strawberries, raspberries, gooseberries, redcurrants, plums and rhubarb,
- red beetroot juice, whether or not concentrated: only in jam and jelly manufactured from strawberries, raspberries, gooseberries, redcurrants and plums,
- essential oils of citrus fruits: only in citrus marmalade and jelly marmalade,

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- edible oils and fats as anti-foaming agents: in all products,
- liquid pectin: in all products,
- citrus peel: in jam, extra jam, jelly and extra jelly,
- leaves of *Pelargonium odoratissimum*: in jam, extra jam, jelly and extra jelly, where they are made from quince,
- spirits, wine and liqueur wine, nuts, aromatic herbs, spices, vanilla and vanilla extracts: in all products,
- vanilline: in all products,

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- food additives authorised in accordance with Regulation (EC) No 1333/2008 of the European Parliament and of the Council ⁽²⁾.

⁽¹⁾ See page 47 of this Official Journal.

⁽²⁾ Regulation (EC) No 1333/2008 of the European Parliament and of the Council of 16 December 2008 on food additives (OJ L 354, 31.12.2008, p. 16).

▼B*ANNEX III***A. DEFINITIONS**

For the purposes of this Directive, the following definitions shall apply:

1. Fruit:

- fresh, sound fruit, free from deterioration, containing all its essential constituents and sufficiently ripe for use, after cleaning, removal of blemishes, topping and tailing,
- for the purposes of this Directive, tomatoes, the edible parts of rhubarb stalks, carrots, sweet potatoes, cucumbers, pumpkins, melons and water-melons are considered to be fruit,
- ‘ginger’ means the edible root of the ginger plant in a fresh or preserved state. Ginger may be dried or preserved in syrup.

2. (Fruit) pulp:

The edible part of the whole fruit, if appropriate, less the peel, skin, seeds, pips and the like, which may have been sliced or crushed but which has not been reduced to a purée.

3. (Fruit) purée:

The edible part of the whole fruit, if necessary, less the peel, skin, seeds, pips and the like, which has been reduced to a purée by sieving or a similar process.

4. Aqueous extracts (of fruit):

The aqueous extract of fruits which, subject to the losses necessarily occurring in proper manufacturing, contains all the water-soluble constituents of the fruit used.

5. Sugars

Authorised sugars are:

1. the sugars as defined in Directive 2001/111/EC ⁽¹⁾;
2. fructose syrup;
3. sugars extracted from fruit;
4. brown sugar.

B. TREATMENT OF RAW MATERIALS

1. The products defined in items 1, 2, 3 and 4 of part A may be treated in the following ways:

- heated, chilled or frozen,
- freeze-dried,
- concentrated, to the extent that is technically possible,

⁽¹⁾ See page 53 of this Official Journal.

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2. Apricots and plums to be used in the manufacture of jam may also be treated by other drying processes apart from freeze-drying.
3. Citrus peel may be preserved in brine.